

		discussed above, Plaintiffs also sufficiently plead a cause of action for negligent misrepresentation. (See <i>ibid.</i>) Accordingly, the Court DENIES Defendants' motion as to the third cause of action.
8	Ayoubi v. National General Premier Inc. Co. 2024-01394713 Motion for Summary Judgment/Adjudication	Defendant National General Premier Insurance Company's Motion for Summary Judgment/Adjudication is CONTINUED to 7/27/26 at 1:45 p.m. in this Department. The Court's electronic docket reflects that on 6/22/26, Plaintiff attempted to file a request for dismissal as to moving Defendant, but the filing was rejected by the Court Clerk for the following reason: "The attorney or party information is incomplete or inconsistent with our records. State Bar Number was not listed in the document header. Please ensure that all fields match our records." Plaintiff shall promptly file a revised request for dismissal, after which the Court will take the continued hearing off calendar.
9	Hassanin v. RDS Real Estate LLC 2023-01335896 Motion for Summary Judgment/Adjudication	Defendants RDS Real Estate, LLC and Ibrahim Ghanem's motion for summary judgment or in the alternative (1) motion for summary adjudication or (2) motion for Judgment on the pleadings is GRANTED. Leave to amend is DENIED. Defendants' request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).) Defendants' objections are SUSTAINED. Defendants seek summary judgment on the grounds that plaintiff Mohamed Hassanin, DC ("Hassanin") does not have standing to assert the causes of action alleged in the operative Second Amended Complaint ("SAC") because he is not a party to the Agreement that forms the basis of the SAC. A corporation exists as a separate legal entity, distinct from its owners/shareholders, and as a result, owners/shareholders have no personal or individual right of action against third persons for a wrong or injury to the corporation. (<i>Grosset v. Wenaas</i> (2008) 42 Cal.4th 1100, 1108; <i>Jones v. H.F. Ahmanson & Co.</i> (1969) 1 Cal.3d 93, 107.) Such claims must be brought by the corporation itself. (See Code Civ. Proc. §367 [every action must be prosecuted in the name of the real party in interest].) If the corporation fails or refuses to do so, a stockholder may bring a derivative suit on behalf of the corporation. (<i>Grosset</i>, <i>supra</i>, 42 Cal.4th at p. 1108; <i>Jones</i>, <i>supra</i>, 1 Cal.3d at p. 107.) Defendants' material facts establish the following: Hassanin filed the original complaint on behalf of himself individually arising from a written Marketing Services Agreement (the "Agreement"). (UMF Nos. 1-2.) The complaint alleges the